

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Coleson Smith	Team: Squad #01	CCRB Case #: 202104116	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/06/2021 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/6/2023	Precinct: 73		
Date/Time CV Reported Mon, 07/12/2021 12:06 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 07/12/2021 12:06 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jonathan Martinez	03258	953059	INT CIS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Joseph Bucchignano	01460	932373	E S U
2. SGT Daniel Conforti	01237	940995	ESS 01
3. DTS Patrick Ruppert	07102	947444	ESS 01
4. POM David Mercado	11610	952007	ESS 06
5. DTS David Fekety	07644	932625	E S U
6. CPT Michael Sambriski	00000	933321	077 PCT
7. POM Christian Lopez	24864	955083	077 PCT
8. POF Samantha Love	02842	966677	077 PCT
9. SGT Avinash Patel	05322	940551	INT CIS
10. LT Eric Delman	00000	922228	077 PCT
11. DT3 Krystopher Valentin	03641	960044	INT CIS
12. DT3 Tony Cuoco	02947	950261	INT CIS
13. DTS Paul McCartney	04238	938977	ESU
14. DTS Derek Labua	02993	943456	ESS 09
15. DTS Jesus Tavarez	05486	946310	ESS 08

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Jonathan Martinez	Abuse: Detective Jonathan Martinez entered § 87(2)(b)	A . Exonerated
B . DT3 Jonathan Martinez	Abuse: Detective Jonathan Martinez searched § 87(2)(b)	B . Exonerated

Case Summary

On July 12, 2021, § 87(2)(b) filed this complaint with the CRRB over the phone.

On July 6, 2021 at approximately 6:00 A.M., Detective Jonathan Martinez and other officers from the Intel Criminal Section, Emergency Services Unit (ESU), and the 77th Precinct entered and searched § 87(2)(b), in Brooklyn (**Allegations A and B: Abuse of Authority: exonerated**).

No arrests or summons resulted from this incident.

Eighteen police body worn cameras were received for this incident (**01-18 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Jonathan Martinez entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Detective Jonathan Martinez searched § 87(2)(b) in Brooklyn.

It is undisputed that Det. Martinez and officers from ESU, the Intel Section, and the 77th Precinct entered and searched § 87(2)(b), in Brooklyn, pursuant to a valid search warrant on July 6, 2021.

Police documentation confirmed that a valid search warrant, Kings County search warrant § 87(2)(b), authorizing Det. Jonathan Martinez, or any police officer to execute a no-knock entry and search of § 87(2)(b), in Brooklyn, between the hours of 6 A.M. and 9 A.M., and seize a firearm on the person of § 87(2)(b) (**19 Board Review**).

New York State Criminal Procedure Law Section 690.50, states that a search warrant authorizes a police officer to conduct a search of designated premises for the purpose of seizing property, and to deliver any property obtained to the court which issued the warrant. Officers are not required to give prior notice of authority or purpose to the occupants of the premises to be searched, provided the search warrant expressly authorizes entry without notice (**20 Board Review**).

§ 87(2)(g)
As such, it is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (**21 Board Review**).
- Det. Martinez has been a member of service for nine years, and has been a subject in 12 CCRB complaints, and 36 allegations, three of which were substantiated.
 - 201402142 involved substantiated allegations of discourteous language, offensive language based on race, and offensive language based on sexual orientation. The NYPD imposed Command Discipline -B.
 - 202004284 involves an entry of premises and a search of premises.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On December 29, 2021, a Notice of Claim inquiry was sent to the NYC Office of the Comptroller, and the inquiry is still pending. The results will be added to the case file upon receipt **(23 Board Review)**.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 1

Investigator: Coleson Smith Investigator Coleson Smith 1/3/2021
Signature Print Title & Name Date

Squad Leader: Enoch Sowah _____ 1/3/2021
Signature Print Title & Name Date

Reviewer: _____ _____ _____
Signature Print Title & Name Date